

SERVICE LEVEL AGREEMENT

Entered into by and between

EASTERN CAPE DEPARTMENT OF HUMAN SETTLEMENTS (ECDOHS), a Provincial Department in the Government of the Republic of South Africa herein represented by Ms. M.N. KETTLEDAS in her duly authorized capacity as CHIEF DIRECTOR: HOUSING ASSETS AND PROPERTY MANAGEMENT.

And

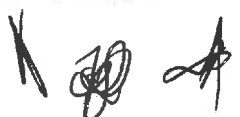
BNI ATTORNEYS Reg. No: 1999/021921/21 represented by Mr. Julian Alistair Lindoor in his duly authorized capacity and warranting authority thereof as the DIRECTOR herein after called "*the Service Provider*".

In re

TRANSFER OF 500 SUBSIDY ERF'S IN CATHCART 560 IN AMAHLATHI LOCAL MUNICIPALITY UNDER AMATHOLE DISTRICT.

PREAMBLE

- A. **MANDATED** by the provision of section 26 of The Constitution of the Republic of South Africa, 1996 which acknowledges provision of adequate housing as a fundamental human right and compels the state to take reasonable legislative and other measures, within its available resources to achieve the progressive realization of this right.
- B. **WHEREAS** in terms of the Housing Act (Act 107 of 1997) as read with the National Housing Code, issuance of title deeds to the rightful beneficiaries is a fundamental objective of the housing delivery process and central to achievement of the Outcome 8 goal on Sustainable Human Settlements and Improved Quality of Household life.
- C. **FURTHER**, this agreement seeks to fulfill the objective to transfer title deeds to the rightful owners by prioritizing the eradication of the title deeds registration backlog for subsidized housing units built pre-2014 and post 2014.
- D. **INSPIRED** by the Batho Pele principles on service delivery, the Eastern Cape Department of Human Settlements (ECDOHS) hereby enters into this Agreement with the entity named in the paragraph E1 below in accordance with the National Housing Code, 2009 as amended.
- E. **AND WHEREAS** the parties to this Agreement are.
- D1. The Eastern Cape Department of Human Settlements (ECDOHS), as the employer and provider of project funds for this project, and.
- D2. BNI Attorneys, being the Service Provider.

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1. Definitions

In this agreement, unless the context clearly indicates otherwise:

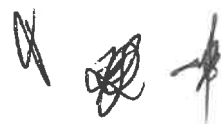
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|------|----------------|---|
| 1.1. | Agreement | means this agreement and all schedules annexed thereto; |
| 1.2. | Contract Price | means an amount of <u>R 760 000</u>
<u>VAT @ Zero Rate</u> (seven hundred and sixty thousand rands only) being consideration payable by the Department for transferring 500 units. |
| 1.3. | Effective Date | means date of signing by last party to ament signature. |
| 1.4. | Duration | means a period of 12 calendar months counted from effective date. |
| 1.5. | Parties | means the Eastern Cape Department of Human Settlements and BNI Attorneys. |
| 1.6. | Services | means transfer of 500 title deeds to rightful beneficiaries as more comprehensively stipulated in this Agreement. |

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[Signature]

- 1.7. Sub-directorate means the Housing Assets and Property Management.
- 1.8. The headings to the clauses of this Agreement are inserted for reference purposes only and shall in no way determine or affect the interpretation hereof.
- 1.9. Words importing the singular shall include the plural and vice versa.
- 1.10. Words importing persons shall include legal persons and vice versa.
- 1.11. Words importing any gender shall include all other genders.
- 1.12. When any number of days is prescribed, such number shall include Saturdays, Sundays and public holidays.
- 1.13. When any period of notice is prescribed, such period shall exclude the day on which such notice is delivered.
2. This Agreement shall be read and interpreted in whole to consist of the following Annexure.
- | | | |
|------|------------------------------------|------------|
| 2.1. | The letter of Appointment- | Annexure A |
| 2.2. | Terms of Reference/ Scope- | Annexure B |
| 2.3. | Project Implementation Plan-- | Annexure C |
| 2.4. | Professional Indemnity/ Guarantee- | Annexure D |
3. Introduction

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- 3.1. The scope of services to be rendered to ECDOHS by the Service Provider is stipulated in Table 1 below.

Table 1.

PROJECT NAME	UNITS	MILESTONE	RATE	TOTAL
CATHCART	500	Transfer of Title	1520	760 000
TOTAL AMOUNT	500			R 760 000

Source: Letter of Appointment dated 26 March 2024

- 3.2. The Service Provider is expected to provide the following competencies.

- a) To have comprehensive knowledge of the National Housing Code.
- b) Knowledge of the EEDBS policy and implementation framework.
- c) To have extensive knowledge of the Property transfer procedures and processes.
- d) Facilitation skills to unlock any bottlenecks to transfers within the municipalities.
- e) Obtain prior written approval from the department prior to incurring any expenditure or rendering any services incidental to but outside the scope of duties agreed herein

4. Engagement

The ECDOHS hereby engages the Service Provider who hereby undertakes to provide the Services on the terms set out in this Agreement.

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5. Duration

This Agreement shall be deemed to have commenced on the date of signing by last party to append signature and shall terminate after **12 (Twelve) months.**

6. Contract Price

6.1. As consideration for the Services, the ECDOHS shall pay to the Service Provider the Contract Price means an amount of **R 760 000 VAT @ Zero Rate** (seven hundred and sixty thousand only) being consideration payable by the Department for transferring 500 units.

6.2. For the consideration in 6.1 above, the Service Provider shall be paid strictly in terms of Progress Payments on milestones achieved and there shall be no demand or expectation for advance payments.

6.3. The Parties agree that should the ECDOHS call upon the Service Provider Service Provider to perform any services not falling within the scope of the Services set out in TOR annexed hereto as Annexure B, then the Service Provider Service Provider shall be entitled to remuneration at the rate set therein.

6.4. Such incidental work or support work alluded to in 6.3. above shall be ratified only if Service Provider sought prior written confirmation from the department before performing such extra activities

7. Payment

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- 7.1. The Service Provider Service Provider shall furnish the ECDOHS with a payment claim on a monthly basis and the ECDOHS undertakes to honor the payment on the claims not later than 30 days from the date of submission of such invoices.
- 7.2. The Service Provider's monthly invoices shall be for an amount reflecting the value of that portion of the Services which have been performed during that particular month, as reflected in the detailed Program Implementation Plan (PIP) attached herein as Annexure C.
- 7.3. The Department shall pay the monthly invoice amount to the Service Provider within 30 days of receipt of the Service Provider Service Provider's monthly payment claim.
- 7.4. All payments shall be made by electronic bank transfer to the credit of the Service Provider Service Provider's bank account, the details of which are as follows:

Beneficiary	:	BNI Attorneys
Bank	:	Standard Bank
Account Number	:	080419631
Branch Code	:	050017

8. Duties and Obligations of Service Provider Service Provider.

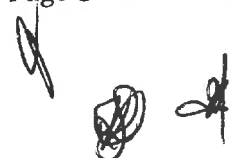
This project is for the transfer of Title for 500 subsidised housing units to the rightful beneficiaries in various projects listed in **Clause 3 (Table 1)** above, under Amathole municipality. The Scope of Works entails the following activities.

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- 8.1. The project is located in Amathole Municipality.
- 8.2. The main duty and obligation is to register 500 units built by the department in these areas.
- 8.3. The transfers must be undertaken by a qualified and registered conveyancer.
- 8.4. Service Provider shall acquire valid Deeds of Sale, Clearance Certificates and any other support documents for each beneficiary from the relevant municipality.
- 8.5. The Service Provider will then lodge the documents to the Deeds Office for examination and Registration.
- 8.6. The final payment certificate shall be paid to the Service Provider only after delivering the Title Deeds to the department.
- 8.7. In executing obligations in terms of this Agreement, the Service Provider shall utilize its own resources, computers and related stationary requirements to cover the entire scope as provided in Annexure B.
- 8.8. No variation of the scope of the services to be rendered by the Service Provider shall be valid unless reduced to writing and signed by both Parties.
- 8.9. In performing the activities listed in 8.1 to 8.6 above, the Service Provider shall ensure Professional Indemnity Cover, or a substitute performance guarantee/ cover is in place and valid in all material times from inception of the project to practical completion.

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8.10 On completion and /or during the implementation of the project, the Service Provider Service Provider is expected to produce the following deliverables;

- a) Project Implementation Plan approved by department.
- b) Preliminary Desk Top Report on Conditions of Establishment of the 2 projects.
- c) Final Verification report on each 500 units to be transferred including approved General Plan, relevant diagrams, Conditions of Establishment and Township Register(s).
- d) 500 individual Title Deeds delivered to department.
- e) A close out Report

9. Reporting and Monitoring.

9.1. The Service Provider's performance shall be monitored by Korbitec, a company appointed by the National Department of Human Settlements for such a purpose and if the performance is not acceptable the Korbitec tool will detect that, and the department reserves the right to act on that.

9.2. During the duration of the agreement, the Service Provider is expected to produce and submit the following to the department.

- a) Submit daily tick sheets on activities actually achieved.

- b) Monthly report on performance areas achieved.
- c) A close out report covering the 12 months of activities performed on completion of this agreement.

10. Duties and Obligations of ECDOHS.

- 10.1 The ECDOHS undertakes to pay the Service Provider's claims for services within 30 calendar days from the date of submission of claim form certified by the department.
- 10.2 Payment for work delivered will be administered on acceptance of satisfactory copies of a report per specific milestone by the sub-directorate or on other mutually agreed milestone as detailed in the PIP.
- 10.3. The ECDOHS will at all times act in good faith to ensure that the deliverables are met and will provide the necessary support to the Service Provider in this regard, as dictated by circumstances.

11. Instructions and Directions

- 11.1. The Service Provider shall comply with all reasonable instructions and directions issued by the sub-directorate in relation to the Services to be rendered in terms of this Agreement.

12. Confidentiality

- 12.1 The Service Provider shall not, during the currency of this Agreement or at any time, thereafter, disclose to any person or

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otherwise make use of any confidential information which it has obtained or may in the course of this Agreement obtain relating to the ECDOHS.

12.2 If the Service Provider is not sure whether the information is confidential, he shall treat such information as confidential until otherwise directed by the ECDOHS.

12.3 The Department shall not disclose to any person anything contained in this Agreement without the prior written authority of the Service Provider Service Provider.

13. Procurement

13.1 The Service Provider Service shall not act as agent for and on behalf of the Department as principal if and when auxiliary or other services are needed.

14. Meetings and Reporting

14.1 The Service Provider Service Provider shall submit monthly Progress Reports and a Final Close Out Report at the end of the agreement to the Project Steering Committee on every milestone completed.

14.2 The Service Provider Service Provider's monthly report shall be delivered to Project Manager on or before the last day of each month for the duration of the Agreement.

15. Information and Assistance

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15.1 The Parties agree that the Service Provider Service Provider's requests for information and assistance shall be directed to the Director of the sub-directorate who will in turn direct them to the relevant departmental office.

15.2 The Department shall furnish to the Service Provider without charge and within a reasonable time all pertinent data and information available to it and that is relevant to the implementation of this agreement.

16. Equipment and Facilities

16.1 The Service Provider shall provide all facilities and equipment as may be required for the execution of the Services for as long as may be necessary for the performance of the Services.

16.2 Any equipment provided by the Department for the use of the Service Provider Service Provider or purchased by the Service Provider Service Provider with the funds wholly supplied or reimbursed by the Department shall be the property of the Department and shall be so marked. Upon termination of this Agreement the Service Provider Service Provider shall furnish to the Department inventories of the equipment and dispose of the same as directed by the Department.

17. Representatives

17.1 Each party shall designate an individual to be its representative for the administration of this Agreement and such representative shall have full authority to act on behalf of that Party for all purposes

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relating to this Agreement.

17.2 The Parties may from time to time replace the representatives and shall give the other party notice in advance of any such replacement.

17.3 For the purposes of signing this Agreement, the Parties nominate the following representatives:

17.3.1 The Department represented by **Ms. M.N. Kettledas** in her duly authorized capacity as Chief Director of the sub-directorate.

17.3.2 The Service Provider represented by the Director.

18. Indemnity

18.1 The Service Provider hereby indemnifies the Department against any liability which the Department may incur as a result of any claim against the Department by any third party in respect of any loss, death, injury or damage directly arising from any willful or negligent acts or omissions by the Service Provider, its employees, agents in performing its obligations under this Agreement.

18.2 The Department hereby indemnifies the Service Provider against any liability which the Service Provider may incur as a result of any claim against the Department by any third party in respect of any loss, death, injury or damage directly arising from any willful or negligent acts or omissions by the Department, its employees, agents in performing its obligations under this Agreement.

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18.3 The total liability of the Service Provider to the Department for all claims under clause 18.1 shall be limited to one and a half times the total remuneration payable by the Department to the Service Provider under this Agreement.

19. Insurance

19.1 The Service Provider shall maintain for as long as may be necessary, such insurances as may be necessary to cover its obligations and liabilities under or relating to this Agreement, where applicable.

19.2 The Service Provider shall pay all premiums due in respect of such insurance and shall provide proof of payment thereof to the Department on request and where applicable.

20. Limitation of Liability

20.1 The total liability of the Service Provider to the Department in respect of any and all claims which the Department may have against the Service Provider Service Provider arising out of the performance by the Service Provider Service Provider of its obligations under this Agreement shall be limited to one and a half times the remuneration payable by the Department to the Service Provider Service Provider under this Agreement.

21. Intellectual Property

21.1 The ECDOHS shall retain all rights, title and interest to intellectual property produced by the Service Provider during the currency of this Agreement.

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22. Breach

22.1 If either party shall breach any provision of this agreement and fail to remedy such breach within seven (7) days of receipt of written demand from the other party, the innocent party shall be entitled to cancel this agreement by giving written notice to that effect to the defaulting party. Such cancellation shall be without prejudice to any other remedies the innocent party may have in terms of common law pursuant to such breach and cancellation.

23. Force Majeure

23.1 Neither party shall be liable to the other for any failure to perform its obligations under this Agreement if such performance is prevented by any circumstance reasonably beyond its control.

23.2 If the performance by either party of its obligations in terms of this Agreement is prevented by any occurrence reasonably beyond its control, the party concerned shall give written notice thereof to the other party setting out full details of such occurrence whereupon the operation of this Agreement shall be suspended until the termination of such occurrence.

24. Consequences of Termination

24.1 Upon termination of this Agreement the Service Provider shall be obliged to reduce expenditure to a minimum and shall be entitled to be paid:

24.1.1 All amounts which are due to it under this Agreement up to the Effective Date of such termination, less the amounts

previously paid by the Department to the Service Provider
Service Provider in respect of the Services; and

24.1.2 All costs incidental to the termination of the Services.

25. Informal Arbitration

25.1 Any difference or dispute between the parties in connection with the interpretation or application of the provisions of this Agreement or its breach or termination may be referred to and be determined by informal arbitration in terms of this clause by written agreement between the Parties.

25.2 This clause shall not preclude either party from obtaining interim relief on an urgent basis from a court of competent jurisdiction pending the decision of the arbitrator.

25.3 The arbitrator shall be agreed upon between the parties. Should the parties fail to agree on an arbitrator within seven (7) days after agreeing to arbitration in terms of clause 25.1; the arbitrator will be appointed at the written request of any party to the dispute by the chairman for the time being of the East Cape Society of Advocates (Port Elizabeth branch).

25.4 The arbitration shall be held: -

25.4.1 At Port Elizabeth as agreed by the Parties;

25.4.2 In an informal manner without any pleadings and without it being necessary to observe the strict rules of evidence;

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- 25.4.3 As soon as possible with a view to it being completed within one (1) month from the date on which the dispute is referred to the arbitrator;
- 25.4.4 In accordance with such procedures as the arbitrator may determine in his discretion, provided that such procedures shall be fair to both parties.
- 25.5 The arbitrator shall be entitled to investigate or cause to be investigated any matter which he considers necessary or desirable in connection with the dispute and for that purpose shall have the widest powers of investigating all the relevant books and records of the parties to the dispute, including the right to make copies and to have such records and books produced or delivered at any reasonable place required by them for the aforesaid purpose.
- 25.6 The arbitrator shall decide the dispute in accordance with South African law.
- 25.7 The arbitrator shall be entitled to make such award, including an award in respect of costs, as he may deem fit provided that the arbitrator shall be required to furnish written reasons.
- 25.8 The decision of the arbitrator shall be final and binding on both parties, save in the event of it being established that: -
- 25.8.1 The arbitrator has misconducted himself in relation to his duties as arbitrator; or

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25.8.2 The arbitrator has committed any gross irregularity in the conduct of the arbitration proceedings or has exceeded his powers; or

25.8.3 An award has been improperly obtained, in which event the decision of the arbitrator may be set aside upon application to the High Court by the aggrieved party in accordance with the provisions of Section 33 of the Arbitration Act 1965.

25.9 The decision of the arbitrator may be made an order of court by either of the parties at the cost of such party.

25.10 The provisions of this clause are severable from the rest of this Agreement and will remain in effect notwithstanding the cancellation, termination or invalidity for any reason of this Agreement.

26. Notices

26.1 All notices to be given in terms of this agreement shall be given in writing and shall be addressed and delivered as follows:-

26.1.1 In the case of the Department either by registered mail to Private Bag X13008, Cambridge, 5247

Or by hand delivery to 31-33 Philip Frame Road, Chislehurst, East London.

Or by fax-to-fax number (043) 711 9500.

26.1.2 In the case of the Service Provider Service Provider, by registered mail to.

22 Pickering Street, Newton Park, Port Elizabeth.

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Or email: j.lindoor@bnilaw.co.za

26.2 Either Party may change any of its addresses aforementioned by giving seven (7) days' written notice to that effect to the other Party.

27. Entire Agreement

27.1 This Agreement, together with all annexures annexed thereto, if any, represents the entire agreement between the Parties and supersedes all other agreements or understandings, written or verbal, that the Parties may have had with respect to the subject matter of this Agreement.

28. Variation

28.1 No addition to, variation or consensual cancellation of any provision in this Agreement, including this provision, shall be of any force or effect unless reduced to writing and signed by or on behalf of both Parties.

29. Waiver

29.1 No relaxation which either Party may give in regard to the performance of the other Party's obligations in terms of this Agreement shall constitute a waiver of rights unless reduced to writing and signed by such Party.

30. Formality

30.1 This Agreement shall only take effect and become binding upon the Parties when signed by both Parties, failing which neither Party may claim the existence of an agreement from negotiations having

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been conducted or concluded in regard thereto or by reason of this Agreement having been drafted or signed by either of the Parties.

31. Authority

31.1 The signatories to this Agreement warrant that they are duly authorised to sign this Agreement on behalf of the Parties hereto.

32. Costs

32.1 Each party shall bear their own costs incidental to the preparation of this Agreement.

33. Cession and Assignment

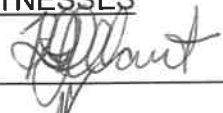
33.1 This agreement is personal to the parties and neither party shall be entitled to cede, assign, make over, transfer or encumber any of its rights, title or interests thereto or delegate any of its obligations hereunder without the prior written consent of the other party. If one party is in breach of its obligations in terms of the agreement and has failed to remedy such breach, the injured party is entitled to assign its rights and obligations without the consent of the breaching party.

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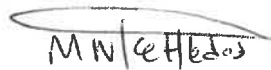
THUS, SIGNED by Service Provider at GQEBERHA on this 15 day of
APRIL 2024


MR. J. A. LINDOOR
DIRECTOR
BNI ATTORNEYS

WITNESSES

1. 
2. 

THUS, SIGNED by the Department at EAST LONDON on this 31 Day of
MAY 2024


MS. N.M. KETTLEDAS
CHIEF DIRECTOR:
HOUSING ASSETS AND
PROPERTY MANAGEMENT
ECDHS

WITNESSES

1. 
2. 

ANNEXURE A

APPOINTMENT LETTER



Province of the
EASTERN CAPE
HUMAN SETTLEMENTS

OFFICE OF THE CHIEF FINANCIAL OFFICER

Steve Tshwete House • 31-33 Phillip Frame Road • Waverly Park • Chiselhurst • East London • Eastern Cape • RSA
Office No: 043 711 9614 • Fax No: 043 711 9796 • Email: nolundip@ecdhs.gov.za

BNI ATTORNEYS
22 PICKERING STREET
NEWTON PARK
6001

Dear Sir/Madam

**SCMU11-21/22-003(7)(a): APPOINTMENT OF A PANEL OF CONVENYANCERS
TO ASSIST THE EASTERN CAPE DEPARTMENT OF HUMAN SETTLEMENTS IN
THE TRANSFER OF PRE-2014 AND POST 2014 HOUSES TO QUALIFYING
BENEFICIARIES IN -CATHCART 560 SUBS-500 UNITS**

1. The above matter bears reference.
2. Please be advised that your company has been appointed to transfer title deed/s to the approved beneficiaries in the above-mentioned project.
3. You are further reminded not to exceed the rates tabulated below:

SCOPE OF WORK/ACTIVITY	DESCRIPTION	RATE	AMOUNT
Transfer of title deed/s	Cathcart 560 subs (500 units)	R1 520	R760 000
Total Amount			R760 000

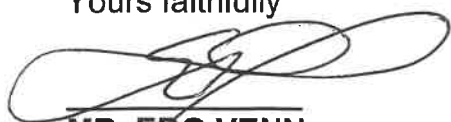
4. The Department will pay you, **R1520** per unit for transfers of title deed to the approved beneficiaries,
5. The duration of the project is **12** months from the date of signing Service Level Agreement by the parties.

6. Please be further advised to submit the following documents to supply chain management unit:

- Signed 7.2 form

It is important that you meet with the Department to reach common understanding on the deliverables mentioned above

Yours faithfully



MR EDQ VENN
HEAD OF DEPARTMENT

22/03/24
DATE



Province of the
EASTERN CAPE
HUMAN SETTLEMENTS

OFFICE OF THE CHIEF FINANCIAL OFFICER

Steve Tshwete House • 31-33 Phillip Frame Road • Waverly Park • Chiselhurst • East London • Eastern Cape • RSA
Office No: 043 711 9614 • Fax No: 043 711 9796 • Email: nolundip@ecdhs.gov.za

BNI ATTORNEYS
22 PICKERING STREET
NEWTON PARK
6001

Dear Sir/Madam

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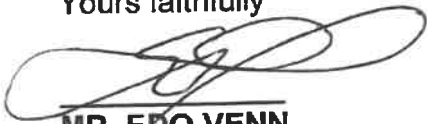
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- Signed 7.2 form

It is important that you meet with the Department to reach common understanding on the deliverables mentioned above

Yours faithfully



MR EDQ VENN
HEAD OF DEPARTMENT

22/03/24
DATE



CONTRACT FORM - RENDERING OF SERVICES

THIS FORM MUST BE FILLED IN DUPLICATE BY BOTH THE SERVICE PROVIDER (PART 1) AND THE PURCHASER (PART 2). BOTH FORMS MUST BE SIGNED IN THE ORIGINAL SO THAT THE SERVICE PROVIDER AND THE PURCHASER WOULD BE IN POSSESSION OF ORIGINALLY SIGNED CONTRACTS FOR THEIR RESPECTIVE RECORDS.

PART 1 (TO BE FILLED IN BY THE SERVICE PROVIDER)

1. I hereby undertake to render services described in the attached bidding documents to **Eastern Cape Department of Human Settlements** in accordance with the requirements and task directives / proposals specifications stipulated in Bid Number **SCMU11-21/22-003(7)(a)** at the price/s quoted. My offer/s remain binding upon me and open for acceptance by the Purchaser during the validity period indicated and calculated from the closing date of the bid.
2. The following documents shall be deemed to form and be read and construed as part of this agreement:
 - (i) Bidding documents, viz
 - Invitation to bid;
 - Tax clearance certificate;
 - Pricing schedule(s);
 - Filled in task directive/proposal;
 - Preference claims for Broad Based Black Economic Empowerment Status Level of Contribution in terms of the Preferential Procurement Regulations 2011;
 - Declaration of interest;
 - Declaration of bidder's past SCM practices;
 - Certificate of Independent Bid Determination;
 - Special Conditions of Contract;
 - (ii) General Conditions of Contract; and
 - (iii) Other (specify)
3. I confirm that I have satisfied myself as to the correctness and validity of my bid; that the price(s) and rate(s) quoted cover all the services specified in the bidding documents; that the price(s) and rate(s) cover all my obligations and I accept that any mistakes regarding price(s) and rate(s) and calculations will be at my own risk.
4. I accept full responsibility for the proper execution and fulfilment of all obligations and conditions devolving on me under this agreement as the principal liable for the due fulfillment of this contract.
5. I declare that I have no participation in any collusive practices with any bidder or any other person regarding this or any other bid.
6. I confirm that I am duly authorised to sign this contract.

NAME (PRINT)

JULIAN LINDOR

CAPACITY

DIRECTOR

SIGNATURE



NAME OF FIRM

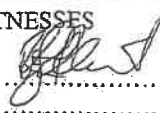
BNF ATTORNEY

DATE

2/04/2024

WITNESSES

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ANNEXURE B

PROJECT IMPLEMENTATION PLAN



attorneys

PROJECT IMPLEMENTATION PLAN: RE: TRANSFER OF 500 UNITS CATHCART

Activity	BNI Action in Project
TAKING INSTRUCTIONS	• Assess the relevant aspects to be attended to by BNI • Draw project implementation plan indicating BNI's anticipated scope of work
RECEIVING /PROCESSING	• Receiving correct instructions. • Conduct necessary Deeds Office searches • Obtaining necessary information and FICA documents from clients to draft the transfer documents. • Obtaining of original Title Deeds / or instructions to apply for VA Deeds
DRAFTING OF TRANSFER DOCUMENTS	• Once FICA documents received from clients, we can proceed to draft the transfer documents. • Requesting of rates figures from the relevant Municipalities
TRANSFER DOCUMENTS TO BE SIGNED	• Documents to be drafted and sent to a correspondent attorney where transfer documents can be signed and commissioned.
APPLICATION FOR TRANSFER DUTY RECEIPTS	• Application for Transfer Duty Receipts once we received the signed documents by clients.
APPLICATION FOR RATES CLEARANCE RECEIPTS	• Application for Rates Clearance receipts once payment received of amounts due to the relevant Municipalities
DOCUMENTS TO BE SENT TO CORRESPONDENTS FOR LODGEMENT	• Signed documents and clearance receipts to be sent to the correspondent attorneys for lodgement in the Deeds Office.
LODGEMENT AND REGISTRATION AND DELIVERY OF DEEDS	• Registration – notify all relevant parties / Municipalities of registration • Submit Final Close Out Report at the end of the agreement to the Project Steering Committee

A handwritten signature in black ink, located in the bottom right corner of the page.

We are not able to provide your office with an official breakdown of turnaround times as we are not in possession of the official list of beneficiaries and property descriptions / confirmation if our office will have to apply for lost Title Deeds.

Signed at Port Elizabeth on the 07 June 2024.



Service Provider

Signed at East London on the _____ June 2024.

Department of Human Settlements

ANNEXURE C

TERMS OF REFERENCE



Province of the
EASTERN CAPE
HUMAN SETTLEMENTS

OFFICE OF THE CHIEF FINANCIAL OFFICER:

Steve Tshwete House • 31-33 Phillip Frame Road • Waverly Park • Chiselhurst • East London • Eastern Cape • RSA
Office No:043 7119585 • Fax No: 043 711 9792 • Email:Ovuyof@ecdhs.gov.za

TERMS OF REFERENCE

**SCMU11-21/22-RFQ000:THE APPOINTMENT OF
CONVEYANCER TO ASSIST THE EASTERN CAPE
DEPARTMENT OF HUMAN SETTLEMENTS IN THE
TRANSFER OF PRE-2014 AND POST-2014 HOUSES
TO QUALIFYING BENEFICIARIES IN AMATHOLE:
Cathcat 560 SUBS 500 UNITS.**

COMPILED FOR:.

Eastern Cape Department of
Human Settlements
Steve Tshwete House
31-33 Phillip Frame Road,
Waverly Park, Chiselhurst
East London

COMPILED BY:

Human Settlements Properties
and Assets Management.
Eastern Cape Department of
Human Settlements
31-33 Phillip Frame Road
East London

OCTOBER 2023

CONTENTS

1. OBJECTIVE	1
2. PROJECT LOCATION	1
3. PROJECT DETAILS.....	1
4. SCOPE OF WORK	1
5. DURATION OF THE CONTRACTS.....	2
6. PRICING AND PAYMENT INSTRUCTIONS.....	2
7. PROJECT OFFER.....	3
8. MINIMUM REQUIREMENTS.....	3
9. CONTACT DETAILS ON TERMS OF REFERENCE.....	3

1. OBJECTIVE

The Department of Human Settlements (DOHS) seeks the services of well experienced conveyancer to assist the Department with transfer of houses to qualifying beneficiaries throughout the Eastern Cape Province.

2. PROJECT LOCATION

The projects are in **AMATHOLE** with the total of 500 properties.

3. PROJECT DETAILS

Table 1: Project Details

NO.	HSS PROJECT NUMBER	LOCAL MUNICIPALITY	DISTRICT MUNICIPALITY	NO. OF UNITS
1.	C98070002/1	AMAHLATHI	AMATHOLE	500
TOTAL				500

4. SCOPE OF WORK

The Conveyancer to be appointed to perform conveyancing work for the Department of Human Settlements for the allocated project which is Sarah Baartman that covers the following main activities:

- 4.1.** Taking instructions and attending to consultations with the Department and relevant local municipality.
- 4.2.** Attending to receipts of and consideration of documents.
- 4.3.** Attending to receipts of and consideration of any plans, diagrams, and/or other material documents.
- 4.4.** Attending to drafting and drawing of Deeds of Transfers.
- 4.5.** Attending to the lodgement and registration of transfers.
- 4.6.** Attending to queries raised by the Registrar and Execution of Deeds of Transfers.

- 4.7. Providing progress report of transfers to the Department.
- 4.8. To assist with rectification/amendment of some of the title deeds with errors which were transferred by previous Service Providers.

4. DURATION OF THE CONTRACTS.

- 4.1. Duration of the contract for an allocated project will be **12 months**.
- 4.2. Allocation of more work will be performance based and contracts of conveyancers that do not produce results for reasons not reported and known by the department, would be considered for termination.
- 4.3. An extension of the contract may be given in rare cases and in situations which may be deemed necessary by the Department.

5. PRICING AND PAYMENT INSTRUCTIONS

5.1. PRICING

Table 1: Transfer of Title Deeds and Opening of Township Register

MAIN SCOPE/ ACTIVITY	DESCRIPTION	RATE
Transfer of Title Deed	Transfer of Title Deed to approved beneficiaries	R1 520-00

Please Note:

- 1) the sum of R1 520.00 includes electronic registration on the Lexis Nexis system and R416.33 for Opening of Township Register. All appointed conveyancers need to be registered with the Lexis Nexis System. Proof of having used the Lexis Nexis System should be accompanied by a Lexis Nexis System. Where this system has not been used a sum of R1 209,00 per registration will apply.

5.2. PAYMENT

Payment will be effected within 30 days on submission of invoice and compliance with the conditions set out in the Service Level agreement.

Each invoice should be companied by a Conveyancer's Certificate and Deeds Report with particulars of beneficiaries of transferred houses.

Conveyancers are required to submit claims on regular basis instead of waiting until several registrations have been processed.

6. PROJECT OFFER AND CONDITIONS OF APPOINTMENT

Conveyancer will be paid R1 520 per unit for transfers of 500 title deeds

NO.	PROJECT	RATE	TOTAL
A.	Cathcat 560 Subs	R1 520	R760 000
Grand Total			R760 000

6.2. CONDITIONS OF APPOINTMENT

- 6.2.1. The conveyancer on acceptance of the offer will have to sign a Service Level Agreement with the Department of Human Settlements.
- 6.2.2. Ensure the beneficiaries to be transferred houses do not appear on the National Department of Human Settlements database of beneficiaries.
- 6.2.3. The appointed conveyancer will furnish the department with an invoice and Conveyancer's certificate depicting transfers registered.
- 6.2.4. The appointed conveyancer will make sure that the process of transfers is conducted in a transparent and fair manner.
- 6.2.5. The conveyancer will be liable for any rectification of transfers if the original transfers they did was done incorrectly.
- 6.2.6. The conveyance firms will be responsible for the registration and processing of all Documents that are deemed to be required for a property to be registered and Transferred to a beneficiary.

7. MINIMUM REQUIREMENTS

The company profile should include the following:

- 14.1. SBD 4, 7, 8 and 9.
- 14.2. Signed Project Implementation Plan (PIP)
- 14.3. Proof of registration to Lexis Nexis

8. CONTACT DETAILS ON TERMS OF REFERENCE

Mr. Xolile Mpupa: Deputy Director – Demand Management; Department of Human Settlements, **EAST LONDON**

Cell: 074 142 4781
Tel: (043) 711 9641
E-mail: XolileM@ecdhs.gov.za

FINAL SUMMARY & FORM OF OFFER

SCMU11-21/22-RFQ000:THE APPOINTMENT OF CONVEYANCER BNI ATTORNEYS

**TO ASSIST THE EASTERN CAPE DEPARTMENT OF HUMAN SETTLEMENTS IN THE
TRANSFER OF PRE-2014 AND POST-2014 HOUSES TO QUALIFYING BENEFICIARIES
IN AMATHOLE: Cathcat 560 Subs.**

NO.	ITEM	RATE	TOTAL
A.	Cathcat 560 Subs	R1 520	R760 000
B.			

GRAND TOTAL =

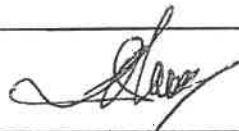
R760000

**GRAND TOTAL ABOVE IN WORDS
SEVEN HUNDRED AND SIXTY THOUSAND RAND ONLY**

SIGNED BY/ON BEHALF OF THE BIDDER

JULIAN LINDOOR

NAME



SIGNATURE

25/03/2024

DATE

COMPANY STAMP



PO Box 27262
Greenacres
6057

attorneys

22 Pickering Street
Newton Park, Port Elizabeth
Tel: 041 363 1154 / 1362
Fax: 041 363 1163
E-mail: admin@bnilaw.co.za

FINAL SUMMARY & FORM OF OFFER

SCMU11-21/22-RFQ000:THE APPOINTMENT OF CONVEYANCER BNI ATTORNEYS

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GRAND TOTAL ABOVE IN WORDS
SEVEN HUNDRED AND SIXTY THOUSAND RAND ONLY

SIGNED BY/ON BEHALF OF THE BIDDER

NAME

SIGNATURE

DATE

COMPANY STAMP

SCMU11-21/22-RFQ000:THE APPOINTMENT OF CONVEYANCER BNI ATTORNEYS TO ASSIST THE EASTERN CAPE DEPARTMENT OF HUMAN SETTLEMENTS IN THE TRANSFER OF PRE-2014 AND POST-2014 HOUSES TO QUALIFYING BENEFICIARIES IN AMATHOLE: CATHCAT 560 SUBS 500 UNITS

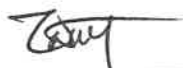


MR. O. P. FIHLA

ASSISTANT DIRECTOR: LAND ACQUISITION AND TENURE SERVICES

10/11/2023

DATE



MR. Z. N. MRWASHU

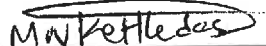
DIRECTOR: LAND ACQUISITION AND TENURE SERVICES

10/11/2023

DATE

RECOMMENDED/~~NOT RECOMMENDED~~

SCOPE ITEMS TO BE CLEARED WITH RELEVANT REGION/
LAND ACQUISITION & TENURE SERVICES BEFORE
COMMENCEMENT OF WORK.



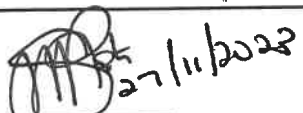
MS. N. M. KETTLEDAS

16/11/2023

DATE

CHIEF DIRECTOR: PROPERTIES AND ASSET MANAGEMENT

RECOMMENDED/~~NOT RECOMMENDED~~



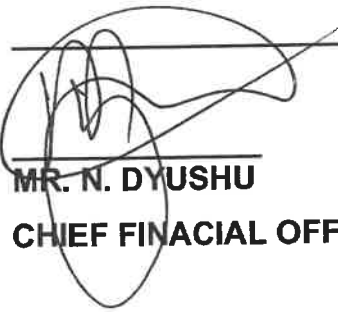
MS. N. PLATYI

DIRECTOR: DEMAND AND ACQUISITION MANAGEMENT

DATE

SCMU11-21/22-RFQ000:THE APPOINTMENT OF CONVEYANCER BNI
ATTORNEYS TO ASSIST THE EASTERN CAPE DEPARTMENT OF HUMAN
SETTLEMENTS IN THE TRANSFER OF PRE-2014 AND POST-2014 HOUSES TO
QUALIFYING BENEFICIARIES IN AMATHOLE: CATHCAT 560 SUBS.

~~RECOMMENDED/NOT RECOMMENDED~~



MR. N. DYUSHU

CHIEF FINACIAL OFFICER

29/11/23
DATE

~~APPROVED/NOT APPROVED~~



MR. EDQ. VENN

ACTING HEAD OF DEPARTMENT

30/11/23
DATE



CSD REGISTRATION REPORT

SUPPLIER IDENTIFICATION

Supplier number	MAAA0094669	Have Bank Account	Yes
Is supplier active?	Yes	Total annual turnover	R10 million or less; or
Allow associates?	Yes	Financial year start date	28 Feb 2017 00:00:00:000
Supplier type	CIPC Company	Registration date	29 Sep 1999 00:00:00:000
Supplier sub-type	Personal Liability Company-(Inc)	Created by	j.lindoor@bnilaw.co.za
Legal name	BNI ATTORNEYS	Created date	18 Apr 2016 10:01:38.000
Trading name	BNI Attorneys	Edit by	csd.reverfybatch@treasury.gov.za
Identification type	South African Company/Close Corporation Registration Number	Edit date	08 Feb 2024 05:18:39.490
Government breakdown	Personal Liability Companies (Inc)	Restricted Supplier	No
Business status	In Business	Restricted Director	No
Country of origin	South Africa	Government Employee	No
South African company/CC registration number	1999/021921/21		

SUPPLIER INDUSTRY CLASSIFICATION INFORMATION

INDUSTRY CLASSIFICATION 1

Main group	Professional, scientific and technical activities	Core industry	Legal and accounting activities
Division	Legal and accounting activities	% share of annual turnover	100.00

SUPPLIER CONTACT INFORMATION

CONTACT 1

Contact type	Administration,Bid Office,Finance	Email address	j.lindoor@bnilaw.co.za
Is this your preferred Contact?	Yes	Telephone number	041 363 1154
Name(s)	Julian Alistair	Cellphone number	082 657 0077
Surname	Lindoor	Fax number	041 363 1163
Identification type	South African Identification Number	Do you want this contact to also be a CSD user ?	Yes
Prefer communication via cellphone	Yes	Created by	j.lindoor@bnilaw.co.za





CSD REGISTRATION REPORT

Prefer communication via email	Yes	Created date	18 Apr 2016 09:27:59:000
Prefer communication via sms	Yes	Edit by	j.lindoor@bnilaw.co.za
		Edit date	19 Mar 2020 13:47:59:597

CONTACT 2

Contact type	Bid Office	Cellphone number	084 460 1769
Is this your preferred Contact?	No	Do you want this contact to also be a CSD user?	No
Name(s)	BAGCINE SIMUYILE	Created by	j.lindoor@bnilaw.co.za
Surname	NTLABEZO	Created date	25 May 2017 10:51:05:480
Identification type	South African Identification Number	Edit by	j.lindoor@bnilaw.co.za
Prefer communication via email	Yes	Edit date	24 Jun 2020 11:17:42:363
Email address	s.ntlabezo@bnilaw.co.za		
Telephone number	041 363 1154		

SUPPLIER ADDRESS INFORMATION

ADDRESS 1

Is this a preferred address?	Yes	Postal code	6055
Address line 1	22 Pickering Street	Country	South Africa
Address line 2	Newton Park, Port Elizabeth	This address S/A delivery	Yes
Suburb	Newton Park	Created by	j.lindoor@bnilaw.co.za
Province	Eastern Cape	Created date	18 Apr 2016 10:01:39:613
Municipality	Nelson Mandela Bay	Edit by	j.lindoor@bnilaw.co.za
City	Port Elizabeth	Edit date	21 Sep 2017 14:18:35:017

ADDRESS 2

Is this a preferred address?	No	Postal code	6057
Address line 1	P.O. Box 27262, Greenacres	Country	South Africa
Address line 2	Port Elizabeth	Created by	j.lindoor@bnilaw.co.za
Suburb	Greenacres	Created date	18 Apr 2016 10:01:39:910
Province	Eastern Cape	Edit by	j.lindoor@bnilaw.co.za
Municipality	Nelson Mandela Bay	Edit date	18 Apr 2016 10:01:39:910
City	Port Elizabeth		





CSD REGISTRATION REPORT

SUPPLIER BANK ACCOUNT

BANK ACCOUNT 1

Account type	Current Accounts	Created by	j.lindoor@bnilaw.co.za
Bank	STANDARD BANK OF SOUTH AFRICA	Created date	01 Aug 2016 09:30:02:000
Branch number	050017	Edit by	csd.safetynetbatch@treasury.gov.za
Branch name	PORT ELIZABETH	Edit date	13 Jan 2017 08:01:54:930
Account number	080419631	Bank Verification Status	Verification Succeeded
Account holder	BAGCINE NTLABEZO INC	Foreign Bank Account	No
Is this a preferred account?	Yes	Is the identifier linked at the bank	Yes
Active start date	18 Apr 2016 09:38:06:000	Is this a Shared Funding Account	No

TAX INFORMATION

Income tax number	9613003079	Overall Tax Status	Tax Compliant
VAT number	4270208446	Created by	j.lindoor@bnilaw.co.za
Is this supplier a VAT vendor?	Yes	Created date	18 Apr 2016 10:01:38:000
PAYE number	7300747088	Edit by	csd.verifybatch@treasury.gov.za
Are you Registered with SARS?	Yes	Edit date	08 Feb 2024 05:18:39:000
Last validation date	25 Mar 2024 15:20:00:000		

B-BBEE INFORMATION

Are you an empowering supplier	No	B-BBEE Procurement Recognition	135%
% Owned by black people	100.00	Accept and understand the content of the affidavit	Yes
% Owned by black people who are women	0.00	Commissioner of Oath	SIRAJ ACKERDIEN
% Owned by black people who are youth	0.00	Date affidavit signed by commissioner of oath	17 Jun 2022 00:00:00:000
% Owned by black people with disabilities	0.00	Affidavit expiry date	16 Jun 2023 00:00:00:000
% Owned by black who are unemployed	0.00	Created by	j.lindoor@bnilaw.co.za





CSD REGISTRATION REPORT

% Owned by black people who are military veteran	0.00	Created date	18 Apr 2016 09:41:57:000
% Owned by black people living in rural or underdeveloped areas	0.00	Edit by	csd.reverifybatch@treasury.gov.za
Status	Expired	Edit date	16 Jun 2023 00:00:04:173
B-BBEE Status Level Of Contributor	Level 1 Contributor	Verification Status	Manual Verification Required

OWNERSHIP INFORMATION

CSD can only verify the youth category of persons for South African citizens. It is the responsibility of an organ of state supply chain practitioner to obtain supporting documentation to verify the ownership information of this supplier

Owner's name and surname Legal name	Owner's Identification number	RSA Citizen	Ethnic group	Gender	Ownership %	Youth	Disabled	Military	Rural	Township
JULIAN ALISTAIR LINDOOR	6804185122081	Yes	Coloured	Male	100.00%	No	No	No	No	Yes
Total					100.00%					

CATEGORY OF PERSONS BASED ON OWNERSHIP

Owned by black people	100.00%
Owned by people	100.00%
Owned by people who are from rural or township	100.00%

DIRECTORS/MEMBERS/OWNERS INFORMATION

DIRECTOR/MEMBER

1			
Director type	Director, Owner	Owner's gender	Male
Director status	Active	Owner youth	No
Name(s)	JULIAN ALISTAIR	Owner person with disabilities	No
Surname	LINDOOR	Owner military veteran	No
Country	South Africa	Created by	csd.reverifybatch@treasury.gov.za
Identification type	South African Identification Number	Created date	21 Aug 2017 09:00:54:000
South African identification number	6804185122081	Edit by	j.lindoor@bnilaw.co.za
Appointment date	15 May 2012 00:00:00:000	Edit date	06 Feb 2020 09:15:47:000
Email address	j.lindoor@bnilaw.co.za	Restricted Director	No
Cellphone number	082 657 0077	Restriction Last Verification Date	25 Mar 2024 15:20:09:800
Owner	Yes	Government Employee	No
Ownership %	100.00%	Government Employee Last Verification Date	25 Mar 2024 15:20:09:537
Living areas of owner	Nelson Mandela Bay, Providentia	SA identification number Verified	Yes





CSD REGISTRATION REPORT

Owner's ethnic group

Coloured

SA identification number
verification date

25 Mar 2024 15:20:09:707

Tips and Frequently Asked Questions (FAQ)

Identifier

CSD cannot electronically verify the identity of a supplier other than a South African Individual / Sole Proprietor (through Home Affairs) or a company registered at the Companies and Intellectual Property Commission (CIPC). For this reason, a disclaimer is displayed for supply chain practitioners to obtain supporting documentation to verify the identity and legitimacy of a supplier in these cases.

Bank

For help on how to resolve bank failures click here: [I received an email stating the bank information I captured on the CSD was sent for bank account validation and could not be validated. The response received from the bank contains an error message. The various possible error messages received from the bank are highSemiBolded in red. Search for the applicable message and follow the detailed steps associated with that error message.](#)

Tax

Tax Compliance Status

For help on how to deal with tax status differences between CSD and the tax clearance certificate click here: [What should a supplier do if the tax status on CSD difference from the tax clearance certificate?](#)

Tax Compliance Expiry Date

For help on how to deal with tax status differences between CSD and the tax clearance certificate click here: [How does CSD determine the tax compliance expiry date?](#)

CIPC

Should the director/member information reflected on the CIPC registration report differs to that reflected on CSD for help click here: [The active Directors/Members are not being populated on the CSD Directors/Members screen as they appear at CIPC, how can I rectify this?](#)

State Employee

For more information pertaining to government employment status click here: [Will there be verification done to identify if a supplier is a government employee?](#)

BBBEE

CSD does not automatically verify all certificate information with the various accreditation bodies. Organs of State are required, where not automatically verified by CSD, to manually verify this information with the applicable accreditation body as per current policies and procedures. Expired certificate information do not reflect on the report.

RESTRICTION

Restricted Supplier - A supplier is restricted by using the identification number of the entity e.g. CIPC registration -, trust -, Social Development non-profit -, South African ID -, Foreign company registration number or ID number. If there is more than one CSD Supplier profile registered on CSD with the same entity identification number, all those related supplier profiles will be restricted.

Restricted Director - A director/owner is an individual person and is restricted by using the South African ID or Foreign ID number. If a director belongs to different companies and has been restricted, the director will reflect as restricted in all companies where identification number is detected.

Restricted Suppliers & Directors are listed on CSD under Help - [Am I restricted?](#)





CSD REGISTRATION REPORT

The CSD does not automatically verify foreign company registration number, international securities identification number, foreign identification numbers, foreign passport numbers, work permit numbers, foreign bank accounts, B-BBEE, demographic and accreditation information. Organs of State are required to manually verify this information with the applicable verification institutions as per their current policies and procedures.

Print Date:

3/25/2024 3:20:26 PM



FINAL SUMMARY & FORM OF OFFER

SCMU11-21/22-RFQ000:THE APPOINTMENT OF CONVEYANCER BNI ATTORNEYS

**TO ASSIST THE EASTERN CAPE DEPARTMENT OF HUMAN SETTLEMENTS IN THE
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B.			
GRAND TOTAL =			R760000

**GRAND TOTAL ABOVE IN WORDS
SEVEN HUNDRED AND SIXTY THOUSAND RAND ONLY**

SIGNED BY/ON BEHALF OF THE BIDDER

JULIAN LINDOOR

NAME



SIGNATURE

25/03/2024

DATE

COMPANY STAMP



PO Box 27262
Greenacres
6057

attorneys

22 Pickering Street
Newton Park, Port Elizabeth
Tel: 041 363 1154 / 1362
Fax: 041 363 1163
E-mail: admin@bnilaw.co.za

BIDDER'S DISCLOSURE

1. PURPOSE OF THE FORM

Any person (natural or juristic) may make an offer or offers in terms of this invitation to bid. In line with the principles of transparency, accountability, impartiality, and ethics as enshrined in the Constitution of the Republic of South Africa and further expressed in various pieces of legislation, it is required for the bidder to make this declaration in respect of the details required hereunder.

Where a person/s are listed in the Register for Tender Defaulters and / or the List of Restricted Suppliers, that person will automatically be disqualified from the bid process.

2. Bidder's declaration

- 2.1 Is the bidder, or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest¹ in the enterprise, employed by the state? **YES/NO**

- 2.1.1 If so, furnish particulars of the names, individual identity numbers, and, if applicable, state employee numbers of sole proprietor/ directors / trustees / shareholders / members/ partners or any person having a controlling interest in the enterprise, in table below.

Full Name	Identity Number	Name of State institution

- 2.2 Do you, or any person connected with the bidder, have a relationship

¹ the power, by one person or a group of persons holding the majority of the equity of an enterprise, alternatively, the person/s having the deciding vote or power to influence or to direct the course and decisions of the enterprise.

with any person who is employed by the procuring institution? **YES/NO**

2.2.1 If so, furnish particulars:

.....

2.3 Does the bidder or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise whether or not they are bidding for this contract? **YES/NO**

2.3.1 If so, furnish particulars:

.....

3 DECLARATION

I, **JULIAN LINDOOR** the undersigned,
 (name)..... in
 submitting the accompanying bid, do hereby make the following
 statements that I certify to be true and complete in every respect:

- 3.1 I have read and I understand the contents of this disclosure;
- 3.2 I understand that the accompanying bid will be disqualified if this disclosure is found not to be true and complete in every respect;
- 3.3 The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement or arrangement with any competitor. However, communication between partners in a joint venture or consortium² will not be construed as collusive bidding.
- 3.4 In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications, prices, including methods, factors or formulas used to calculate prices, market allocation, the intention or decision to submit or not to submit the bid, bidding with the intention not to win the bid and conditions or delivery particulars of the products or services to which this bid invitation relates.
- 3.4 The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or of the awarding of the contract.
- 3.5 There have been no consultations, communications, agreements or arrangements made by the bidder with any official of the procuring

² Joint venture or Consortium means an association of persons for the purpose of combining their expertise, property, capital, efforts, skill and knowledge in an activity for the execution of a contract.

institution in relation to this procurement process prior to and during the bidding process except to provide clarification on the bid submitted where so required by the institution; and the bidder was not involved in the drafting of the specifications or terms of reference for this bid.

- 3.6 I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and or may be reported to the National Prosecuting Authority (NPA) for criminal investigation and or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

I CERTIFY THAT THE INFORMATION FURNISHED IN PARAGRAPHS 1, 2 and 3 ABOVE IS CORRECT.

I ACCEPT THAT THE STATE MAY REJECT THE BID OR ACT AGAINST ME IN TERMS OF PARAGRAPH 6 OF PFMA SCM INSTRUCTION 03 OF 2021/22 ON ENHANCING COMPLIANCE, TRANSPARENCY AND ACCOUNTABILITY IN SUPPLY CHAIN MANAGEMENT SHOULD THIS DECLARATION PROVE TO BE FALSE.



Signature

DIRECTOR

Position

25/03/2024

Date

BNI ATTORNEYS INC.

Name of bidder



PO Box
Grec.

attorneys

22 Pickering Street
Newton Park, Port Elizabeth
Tel: 041 363 1154 / 1362
Fax: 041 363 1163
E-mail: admin@bnilaw.co.za

ANNEXURE D

PROFESSIONAL INDEMNITY



Schedule 6A
(Rule 47.6)

LEGAL PRACTITIONERS' FIDELITY FUND
FIDELITY FUND CERTIFICATE

for the year ending 31 December 2024
Pursuant to the provisions of Chapter 6 of the
Legal Practice Act, 28 of 2014 (the Act)

I hereby certify that

JULIAN ALISTAIR LINDOOR

an attorney

has complied with the provisions of
Section 85 of the Act. The legal practitioner named in
this certificate is obliged to practise subject to the provisions of the Act.

for Executive Officer

Legal Practice Council

Issued on 10/11/2023
FFC02238/2024

ASSOCIATED FIRMS

Firm Name	Firm Number	Province	Role	Associated Period
Ntlabezo Inc, Bagcine	62728	EASTERNCAPE	PARTNERDIRECT OR	2024

